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I N V O I C E

Nr. : CS-25/05187

Date : Jul-09-2025

Consignee:

Payment

BANK TRANSFER AT 90 DAYS INVOICE

Quantity	Description	Unit Price	%VAT	Total Price
20,491.00 BOX	Your Reference: 4500008232 TELMISARTAN 80 MG + HCTZ 12.5 MG X 28 RU Batch: LC91626 HS code 3004900002 Contract number SA-EUR-122024 dd. 04.12.2024 Country of Origin: Spain	1.91 EUR		39,137.81 EUR
	FCA INCOTERMS 2020 MADRID	Total		39,137.81 EUR

Your payments are to be made to: CHEMO S.A., Vienna, Lugano Branch.
Bank: UBS SA - Lugano, IBAN: CH93 0024 7247 7413 2061 T - BIC: UBSWCH3300

CHEMO S.A.
LUGANO BRANCH

Note: the terms and conditions on the reverse side of this invoice form an integral part hereof.

Chemo S.A. Lugano Branch, Via F. Pelli 17, P.O. Box, 6901 Lugano, Switzerland
Tel. + 41 91 973 21 01 - Fax + 41 91 973 21 06 - www.chemogroup.com
Swiss VAT nr. CHE-113.291.215 IVA - Austrian VAT nr. ATU64506412

1] FORMATION OF CONTRACT

- a. This Contract shall be binding upon and enforceable against Buyer when signed and delivered by Seller to Buyer.

2] PRICE

- a. Unless otherwise provided on the face hereof, all prices quoted on the face hereof (i) are final and not subject to discount, rebate or change and (ii) are net of any and all local, state and all other taxes, duties, tariffs and charges to which the goods may be subject, all of which shall be the sole responsibility of Buyer.
- b. If Seller's cost of performance increases after the date hereof by reason of any (i) increased or additional taxes or other governmental charges, freight rates (including freight surcharges), insurance rates (including war risk) or duty/tariff rates, (ii) increase in the cost of the goods to Seller not foreseeable on the date hereof, (iii) force majeure events described below or (iv) change in exchange rates, Buyer shall compensate Seller for such increased cost immediately upon Seller's demand. The amount of such increased cost as computed by Seller shall be final, binding and conclusive upon Buyer absent manifest error.

3] QUANTITY

- a. Quantity shall be as specified on the face hereof.

4] PAYMENT

- a. Payment shall be made as provided on the face hereof. All bank charges and stamp taxes, if any, shall be borne by Buyer unless otherwise stated on the face hereof.
- b. Payment shall be deemed duly made upon Seller's receipt of payment in the currency and upon the conditions specified on the face hereof.
- c. Buyer shall make all payments promptly, without set -off, counterclaim, recoupment or any other withholding whatsoever.
- d. Unless other rate provided on the face hereof, on any overdue amounts from the due date until the date of Seller's actual receipt of full payment, Buyer shall pay interest at the maximum legal rate established in the Buyer's country

5] DELIVERY

- a. Delivery shall be as specified on the face hereof, with shipping terms to be understood as the latest edition of International Commercial Terms published by the International Chamber of Commerce in Paris.

6] INSURANCE

- a. For all FOB, FCA, CFR and CPT shipments, Buyer shall have the sole obligation to obtain insurance on the goods. Buyer shall not be relieved from liability for lost or damaged goods or for payment therefore unless "and until Seller shall have received full payment for the goods involved.
- b. In case of lost or damaged goods in CIF shipments, Buyer shall be responsible for the issuing of an appraisal report by the appraiser according to the insurance terms and conditions.

7] WARRANTIES AND CLAIMS

- a. Seller warrants that the goods are as described on the face hereof including their pharmaceutical quality code number, if any. Any sample provided to Buyer was intended solely to illustrate the general type and quality of the goods and for no other reason. Seller shall have no liability for (i) normal or customary variations from stated quantities or specifications, (ii) damage or deterioration in quality or (iii) loss in weight in transit due to natural causes.
- b. Seller warrants that all goods shall be free from defects in title. (b) The foregoing warranties are conditional upon the goods being handled, stored, tested, inspected, maintained and used in the manner specified by Seller or otherwise in a commercially reasonable manner taking into account the specific nature of the goods. No warranty shall apply to goods which have been modified, misused, neglected or improperly maintained, or which fail to satisfy the applicable warranty due to acts or omissions of persons other than Seller.
- c. Claims of late delivery are barred unless made prior to delivery. Acceptance of any portion of the goods shall constitute a waiver of any claim of late delivery. In the event of late delivery or non-delivery, Seller's liability shall not exceed the fair market value of the goods on the delivery date specified on the face hereof, less the price therefore specified on the face hereof.
- d. Buyer shall inspect the goods immediately upon receipt thereof and make any claim for shortage within 15 calendar days after such receipt. Buyer shall have no claim for shortage where goods are delivered by common carrier and the quantity stated in the bill of lading coincides with that stated on the face hereof.
- e. All other claims of any kind or nature are barred and waived unless in writing, attaching supporting evidence including certificates of independent third parties and delivered to Seller within 15 calendar days after Buyer learns or should have learned of the alleged defect giving rise to the claim, but in no event more than 30 calendar days after delivery. Buyer shall at its cost promptly make such goods available for examination by Seller at a place convenient to Seller. Pending Seller's examination, the goods shall not be used, processed or altered in any way whatsoever, and if Buyer uses, processes or alters the goods, that act shall constitute an unqualified acceptance thereof, and Seller shall have no liability whatsoever. Buyer's failure strictly to follow the procedures established in this paragraph shall constitute a waiver of any claim of defect.
- f. The express warranties set forth above are exclusive and in lieu of all other warranties, oral, written, express, implied or statutory. IMPLIED WARRANTIES OF FITNESS FOR A PARTICULAR PURPOSE AND MERCHANTABILITY ARE EXPRESSLY EXCLUDED.
- g. Buyer's exclusive remedy for breach of warranty shall be for actual damages directly sustained by Buyer. Seller's and its suppliers' sole liability to Buyer, subsequent purchasers and end-users for any and all losses, damages or claims, whether in contract, tort (including negligence, product strict liability) or otherwise, shall be to reimburse Buyer the purchase price paid for the goods involved or, at Seller's option, to repair or replace such goods. In no event shall Seller and its suppliers be liable for any special, indirect, incidental, consequential or punitive damages, loss of profits, interest,

claims of customers or other losses. Seller shall not be liable for (and Buyer assumes sole responsibility for and shall indemnify Seller against liability for) any personal injury and/or property damage arising out of the handling, possession, use or sale of goods (or products made therefrom) by Buyer or others.

- h. Buyer shall advise its customers in writing, before executing any contract for the purchase of goods with such customers, of the provisions contained herein governing force majeure, Seller's warranty obligations and limitations on Seller's liability.

8] FORCE MAJEURE

- a. Seller shall not be liable for non-delivery, late delivery, destruction or deterioration of the goods, or for any failure or delay in the performance of this Contract arising, directly or indirectly, from any cause beyond Seller's reasonable control, including without limitation acts of God, war, threat of war, hostilities, civil commotion, governmental laws, orders or regulations, actions by governmental agencies, fires, floods, earthquakes, explosions, accidents, labor disputes, trade and other restrictions, shortage or control of energy supplies or raw materials, inability of Seller to purchase materials at a commercially reasonable price, default by Seller's supplier, unavailability or delay of reasonable transportation or any other circumstances affecting Seller or any entity directly or indirectly connected with the sale, manufacture or delivery of the goods or components thereof. Seller's time to perform shall be extended for a period not less than the period of the delay, and Seller shall be reimbursed any additional expenses resulting from the delay. Notwithstanding the foregoing, Seller may at its option and without any liability or loss cancel this Contract or any portion so affected. These force majeure provisions shall apply even if the event occurs after Seller's performance has been delayed for other reasons. In no event shall Buyer be excused from its obligation to pay any amounts due hereunder.
- b. Seller may allocate its available supply of goods among itself and its various customers, including those not under contract, on such basis as it determines reasonable in its sole discretion. Seller shall have no obligation to purchase similar goods from other sources. Except to the extent deliveries are canceled or allocations are made hereunder, this Contract shall remain unaffected.

9] SELLER'S REMEDIES

- a. In the event of (i) the Buyer's or any of its affiliates failure to pay any amount or perform any of its other obligations under this or any other contract with Seller or any of Seller's affiliates, (ii) the death or insolvency of Buyer, (iii) any dissolution, liquidation, bankruptcy, reorganization or similar proceeding instituted by or against Buyer or any of its affiliates, (iv) any other adverse condition affecting Buyer or its affiliates or (v) Seller deems itself insecure with respect to Buyer's performance hereunder, then, at Seller's option, all sums owing to Seller under this and any other contract with Buyer or any of its affiliates shall immediately become due and payable without notice or demand and Buyer shall be liable to Seller for any loss and damage arising therefrom, and any property held by Seller or any of its affiliates for Buyer or any of its affiliates (whether paid or not) shall be deemed security for Buyer's obligations hereunder. Seller may at any time set off any amounts payable to Buyer with amounts receivable from Buyer and/or any of its affiliates under this or any other contract.
- b. Affiliate shall mean any individual, partnership, corporation, trust, unincorporated organization, association or other entity or any government, department or agency thereof, controlling, controlled by or under the direct or indirect common control with the party in question. Control shall mean the direct or indirect power to direct or to cause the direction of the management and policies of an entity through ownership of voting securities, by contract or otherwise.
- c. All of Seller's rights and remedies specified herein or otherwise available to Seller are cumulative. No failure, delay or partial exercise of any rights hereunder and no course of dealing shall operate as a waiver of any of Seller's rights or of the right of Seller thereafter to enforce any such right.

10] PATENTS AND INTELLECTUAL PROPERTY

- a. Seller shall not be liable, in Buyer's country or elsewhere, for any alleged infringement of, or other claim relating to any patents, trademarks, trade names, copyrights or any other intellectual or industrial property rights related to the goods or containers, and all consequences of such claims shall be borne solely by Buyer. Nothing herein contained may be construed as transferring ownership rights or right to use any intellectual property rights, which rights are expressly reserved to the lawful owners thereof.
- b. If any infringement claim is made in connection with the goods for which no express patent protection has been given by Seller, Buyer shall indemnify and hold Seller harmless from and against all losses or liabilities arising as a result thereof. That indemnity shall not apply where express patent protection has been given by Seller to Buyer for the goods in question.

11] MISCELLANEOUS

- a. Buyer shall not assign or transfer any of its rights and obligations hereunder.
- b. The provisions hereof are severable and the invalidity or unenforceability of any provision in any jurisdiction shall not affect the validity or enforceability of that provision in any other jurisdiction or the validity or enforceability of any other provision in that or any other jurisdiction.
- c. If Seller elects to commence legal or arbitral proceedings to enforce this Contract, Buyer shall reimburse Seller for all reasonable costs and attorney's fees incurred by Seller in such proceedings, which shall be in addition to any other relief to which Seller may be entitled.
- d. The Parties hereto expressly agree that the United Nations Convention on the International Sale of Goods shall not have any applicability and shall not govern this Agreement or any dispute or matter relating to, arising out of or concerning in any way this Agreement.